

Defendant to perform church services there. There is no evidence indicating what the Property is being used for, much less that it is being used for church services.

In Reply, Plaintiff notes that Defendant's declaration "reflects that he is subdividing the Property in anticipation of 'future sale.'" This appears to contradict any assertion that it was purchased to perform church services. The purchase of property to subdivide and later sell also does not appear to relate to the duties of a pastor.

The evidence appears to show a personal loan to a friend and church mentor to assist during a time of financial uncertainty. Even if performing church services was Defendant's profession, the loan does not appear to be related to that activity. Not only must "the individual against whom attachment is sought ... be engaged in a trade or business, but that the obligation underlying the action must arise directly out of the conduct of the trade or business." (*Great American Ins. Co. v. National Health Services, Inc.* (1976) 62 Cal.App.3d 785, 794.) Plaintiff has provided no admissible evidence establishing that Defendant obtained the loan from Plaintiff as part of his 'trade, business or profession.'

In Reply, Plaintiff argues that Defendant "offers no evidence supporting the assertion in the Opposition that 'the money was used for personal, family, or household purposes.'" The burden, however, is on Plaintiff to show the money was used for commercial purposes. (*Nakasone*, supra, 129 Cal.App.3d 762.) The Defendant does not need to prove otherwise.

Conclusion

Attachment is a harsh remedy because it causes the defendant to lose control of their property before the plaintiff's claim is adjudicated. (*Martin*, supra, 148 Cal.App.3d at 831.) Because of this, the statutory requirements are strictly construed. (*Kemp Bros. Construction, Inc.*, supra, 146 Cal.App.4th at 1476.) Plaintiff has the burden "to show, among other things, that the claim sued upon arose out of the conduct by this individual defendant of a trade, business or profession." (*Nakasone*, supra, 129 Cal.App.3d at 762.) Plaintiff must also show Not "that the obligation underlying the action [arose] directly out of the conduct of the trade or business." (*Great American Ins. Co.*, supra, 62 Cal.App.3d at 794.)

Plaintiff has failed to provide evidence that the loan relates to a commercial transaction. Accordingly, Plaintiff's application for a writ of attachment and right to attach order is **denied**.

9. 9:00 AM CASE NUMBER: C24-03299
CASE NAME: EXO ENERGY, INC. VS. COMPLETE SOLAR, INC.
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: COMPLETE SOLAR, INC.

TENTATIVE RULING:

Defendant Complete Solar's Motion to Compel Arbitration, filed on October 24, 2026, is **granted**. Plaintiff Exo Energy filed a notice of non-opposition on February 10, 2026. The Court will execute the proposed order lodged by Defendant on October 24, 2026. This matter is stayed pending arbitration. No appearance is required at the hearing on February 25, 2026.

10. 9:00 AM CASE NUMBER: C25-00578

CASE NAME: DEVON WENGER VS. ROBERT MEADS

***HEARING ON MOTION IN RE: SEAL OR REDACT PORTIONS OF THE COMPLAINT**

FILED BY:

TENTATIVE RULING:

Non-party KK's Motion to Seal and redact portions of the complaint filed on November 18, 2026 is **granted**, in part. No timely opposition was filed with the Court. The Court shall order redaction of the portions of the complaint requested by non-party KK. Counsel for KK shall prepare a proposed order granting the motion as requested no later five (5) court days from the hearing. Said proposed order shall be accompanied by a redacted complaint. The redacted complaint shall replace the complaint filed February 28, 2025. No appearance is required at the hearing on February 25, 2026.

11. 9:00 AM CASE NUMBER: C25-00839

CASE NAME: RANDY ROBBINS VS. LAW OFFICES OF ROBYN DUNLAP

***HEARING ON MOTION IN RE: ATTORNEYS' FEES AND COSTS,**

FILED BY: DUNLAP-KRASZEWSKI, ROBYN

TENTATIVE RULING:

Summary

Defendants Motion for attorney's fees and costs is **granted** as set forth herein.

Background

On October 7, 2025, the Court issued an order after hearing granting Defendants Robyn Dunlap-Kraszewski, sued erroneously as "Robyn Elaine Dunlap (aka 'Robyn Kraszewski')," Law Office of Robyn Dunlap, and Sharon E. Reno ("Defendants") Motion to Strike the complaint pursuant to the anti-SLAPP statute, which was heard on September 3, 2025. There, the Court found that Defendants met their initial burden under Prong 1 of demonstrating the complaint for malicious prosecution arises out of protected activity. When the burden shifted to Plaintiffs, Plaintiffs failed to prove a probability of prevailing by proving with admissible evidence the minimal merit of each essential element of their malicious prosecution claim.

On October 28, 2025, Defendants filed a Motion for Attorney's fees and Costs, seeking \$76,319 in attorney's fees, \$1,866.81 in costs in connection with the Special Motion to Strike, and \$23,133 to reimburse Defendants for the work expended for this Motion. Defendants make this Motion on the grounds that "a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorneys' fees and costs." Cal. Civ. Proc. Code § 425.16(c). A separate motion may be filed to recover those fees and costs. See *Martin v. Inland Empire Utilities Agency*, (2011) 198 Cal. App. 4th 611, 631; see also *Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.*, (2022) 73 Cal. App. 5th 764, 772–784 (discussing fees recovery options and timing issues).

Plaintiffs Randy Robbins and Sasha Jolley ("Plaintiffs") were required to file and serve any opposition to the Motion for Fees at least nine (9) court days before the scheduled hearing. Cal. Civ. Proc. Code §1005, subd. (b). Nine court days before the hearing is February 10, 2025. Plaintiff did not file a timely opposition to the motion. On February 18, 2026, Defendants filed a Notice of Non-Opposition. In the interim, however, Plaintiffs filed an appeal to the Order Granting Defendants' Special Motion to Strike